HIGH COURT · JUDGMENT DIGEST

Torrent Power AEC Ltd. *v.* Gayatri Intermediates Pvt. Ltd. & connected matters

Letters Patent Appeal Nos. 2634/2004, 471 & 513/2005 and 512/2005 (in Special Civil Application No. 955/2005), with connected Special Civil Applications against Torrent Power AEC Ltd. & the Gujarat Electricity Board | High Court of Gujarat at Ahmedabad | Judgment, 13 April 2006

COURT	High Court of Gujarat at Ahmedabad (Division Bench)
CORAM	Hon'ble Mr. Justice M.S. Shah
DATE OF JUDGMENT	13 April 2006 (Batch judgment on a reference occasioned by conflicting Single-Judge rulings; the Letters Patent Appeals are directed against the common judgment and order dated 10.3.2005 of Jayant Patel, J., with connected Special Civil Applications referred by M.R. Shah, J.)
NATURE OF PROCEEDING	Letters Patent Appeals under clause 15 of the Letters Patent (against the common judgment and order dated 10.3.2005 of a learned Single Judge in Special Civil Applications under Article 226) heard together with connected Special Civil Applications under Article 226, on a reference occasioned by conflicting Single-Judge decisions on Sections 50, 126, 127, 135 & 154 of the Electricity Act, 2003.
PARTIES	Distribution licensees — Torrent Power AEC Ltd. (formerly Ahmedabad Electricity Co. Ltd.) and the Gujarat Electricity Board and its successor companies — who raised supplementary bills for theft of electricity (appellants in the Letters Patent Appeals / respondents in the connected writ petitions) *v.* consumers, including the named respondent Gayatri Intermediates Pvt. Ltd. and other industrial, commercial, domestic & agricultural consumers alleged to have committed theft or unauthorised use of electricity (respondents in the appeals / petitioners in the writ petitions).
PROVISIONS	Sections 45, 50, 56, 62, 126, 127, 135, 143, 145, 151, 152, 153, 154, 156, 157, 172, 174, 183 & 185, Electricity Act, 2003; Sections 21(2), 26(6) & 39, Indian Electricity Act, 1910; Section 49, Electricity (Supply) Act, 1948; Regulation 7 (including 7.2 and 7.6.5 to 7.6.8), Gujarat Electricity Regulatory Commission (Electricity Supply Code & Related Matters) Regulations, 2005, as amended with effect from 14.12.2005; Electricity (Removal of Difficulties) Order, 2005 (S.O. 790(E) dated 8.6.2005); clause 15, Letters Patent; Articles 14 & 20(1), Constitution of India.
RESULT	**Theft assessments are held governed by Section 50 and the Electricity Supply Code, not Section 126, with the Special Court as the consumer's sole civil remedy and no notice required before disconnection on a *prima facie* finding of theft**; applying this, and a period-wise transitional scheme, to the batch, the licensees' Letters Patent Appeals are allowed, the appeal concerning the named respondent is disposed of with a direction to reassess, and the remaining petitions are dismissed, partly allowed, or disposed of without further relief.

POINT FOR DETERMINATION

1. Whether theft of electricity dealt with by Section 135 (Part XIV) is covered by the expression “unauthorised use of electricity” in Section 126 (Part XII), so that assessment in theft cases must also follow the Section 126 procedure.
2. Whether assessment of civil liability in theft cases must comply with the principles of natural justice, and whether disconnection of supply on a *prima facie* finding of theft requires prior notice or an opportunity of hearing.
3. Whether the Central Government’s Removal of Difficulties Order dated 8th June 2005 (issued under Section 183) and the consequential amendment dated 14th December 2005 to Regulation 7.6.5 of the Gujarat Electricity Supply Code are *ultra vires* the Electricity Act, 2003.
4. Whether the jurisdiction of the civil court to entertain disputes over the quantum of a theft assessment is ousted, expressly or impliedly, by the scheme of Sections 145, 151 & 154 of the Act.
5. How the foregoing principles apply, period by period, to theft detected at different times between the commencement of the Electricity Act, 2003 in Gujarat (10th December 2003) and the amendment to the Supply Code (14th December 2005).

FACTS

This batch arises from a conflict of judicial opinion on a distribution licensee’s power, under the Electricity Act, 2003, to assess and bill a consumer for theft of electricity. Jayant Patel, J. and A.L. Dave, J. had held that even theft cases under Section 135 must be assessed under Section 126 (with its built-in natural-justice procedure) and appealed under Section 127, while D.N. Patel, J. (in ***Leenaben Soni v. Ahmedabad Electricity Co. Ltd.*** and ***Ahmedabad Electricity Co. Ltd. v. Ramesh D. Devnani***) and Ravi R. Tripathi, J. had taken the contrary view that Sections 126/127 do not apply to theft, which is governed instead by Section 154(5). M.R. Shah, J. accordingly referred the connected writ petitions to be heard along with the Letters Patent Appeals filed against the common judgment dated 10.3.2005 of Jayant Patel, J.

The appeals and petitions were filed by two distribution licensees — Torrent Power AEC Ltd. (formerly Ahmedabad Electricity Co. Ltd.) and the Gujarat Electricity Board and its successor companies — and by consumers, including the named respondent Gayatri Intermediates Pvt. Ltd., against whom supplementary bills for theft of electricity had been raised at rates variously calculated at one-and-half or two times the applicable tariff, for periods of up to twelve months, under the licensees’ own Conditions of Supply or under the statutory Electricity Supply Code.

During the pendency of the reference, the Central Government issued the Electricity (Removal of Difficulties) Order, 2005 (S.O. 790(E) dated 8th June 2005) under Section 183, enabling the Electricity Supply Code to prescribe the method of assessment in theft cases; the Gujarat Electricity Regulatory Commission accordingly amended Regulation 7.6.5 of its Supply Code with effect from 14th December 2005 to provide for assessment at two times the tariff for up to twelve months, subject to adjudication by the Special Court. The consumers challenged the validity of both the Removal of Difficulties Order and the consequential Supply Code amendment.

In the matter giving the case its title, Letters Patent Appeal No. 512 of 2005 (arising out of Special Civil Application No. 955 of 2005 filed by Gayatri Intermediates Pvt. Ltd. against a theft assessment by AEC) fell in the period between 10th December 2004 and 30th March 2005; the respondent-consumer had not paid any amount towards the disputed bill and its supply had already been disconnected.

REASONING OF THE COURT

> **HEADNOTE**
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> In a batch of Letters Patent Appeals and connected writ petitions raising a reference occasioned by conflicting Single-Judge rulings, the Division Bench holds that theft of electricity under Section 135 of the Electricity Act, 2003 (which requires a dishonest act) is conceptually distinct from "unauthorised use of electricity" under Section 126 (which does not); assessment of civil liability for theft is accordingly not governed by Sections 126/127 but by Section 50 read with the Electricity Supply Code framed thereunder (Regulation 7.6.5, as amended with effect from 14th December 2005 pursuant to the Central Government's Removal of Difficulties Order dated 8th June 2005), with the consumer's remedy against such an assessment lying before the Special Court under Section 154(5)&(6), whose jurisdiction — being a complete, self-contained code — impliedly excludes the civil court. Following ***M.P. Electricity Board v. Harsh Wood Products*** and ***Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board***, no notice or opportunity of hearing is required before disconnecting supply on a *prima facie* finding of theft, since departmental appeal, judicial review and the Special Court's jurisdiction are sufficient safeguards; for theft detected before the Supply Code could validly prescribe an assessment method (i.e., before 14th December 2005), the Bench works out a period-wise transitional scheme capping the licensee's recovery and, correspondingly, the availability of the civil court's jurisdiction.

Theft (Section 135) and unauthorised use (Section 126) are different concepts. At paras 11-12, the Bench holds that every species of theft under Section 135(1) requires a dishonest act (*mens rea*), attracting harsher criminal punishment and a higher civil liability (two times the tariff for up to twelve months), whereas Section 126 (Explanation (b)) requires no *mens rea* and attracts only a best-judgment assessment at one-and-half times the tariff for three or six months. Even "use through a tampered meter" in Section 126's definition does not import dishonesty: a consumer honestly unaware that a meter (tampered by a predecessor) is faulty is liable only under Section 126, while one who knowingly draws power through a tampered meter commits theft under Section 135(1)(b). The Legislature therefore consciously created two separate regimes; the Delhi High Court's view in ***Sohanlal v. North Delhi Power Ltd.*** is noted as being to like effect (para 12.4).

No natural-justice hearing is required before disconnection for *prima facie* theft. At para 13, relying on ***M.P. Electricity Board v. Harsh Wood Products*** and ***Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board***, the Bench holds that once a licensee prima facie finds a consumer to have committed theft, no notice or opportunity of hearing is necessary before disconnecting supply; supply may be restored only on payment or compensation. Those authorities held such disconnection is not violative of Articles 14 or 20(1) of the Constitution nor of natural justice, because departmental appeal and judicial review under Article 226 were sufficient safeguards; the Bench adds that the Electricity Act, 2003 now additionally provides the Special Court under Section 153, with appeal/revision to the High Court under Section 156 — a further, adequate safeguard.

The Removal of Difficulties Order and the Supply Code amendment are *intra vires*. At paras 14.4-14.6, applying the restrictions on the removal-of-difficulties power laid down by the Constitution Bench in ***M.U. Sinai v. Union of India*** (that the Government may only round off angularities and cannot change the scheme or essential provisions of the Act), and the further principles in ***Maharana Mills Pvt. Ltd. v. Income Tax Tribunal, Ahmedabad*** and ***Agricultural Market Committee v. Shalimar Chemical Works Ltd.***, the Bench holds that the Central Government's order dated 8th June 2005 and the GERC's consequential amendment to Regulation 7.6.5 merely filled a genuine gap (Section 50 not expressly empowering assessment in theft cases) without disfiguring the Act's existing two-track scheme (Sections 126/127 for non-*mens-rea* cases; Sections 135/153/154 for theft). The challenge to both measures is accordingly rejected.

The Special Court's civil jurisdiction under Section 154(5)&(6) impliedly bars the civil court. At paras 15-17, applying the seven principles on ouster of civil-court jurisdiction from ***Dhulabhai v. State of M.P.***, as narrowed by the Nine-Judge Bench in ***Mafatlal Industries Ltd. v. Union of India***, the Bench holds that a consumer disputing the quantum of a theft assessment (whether or not theft itself is disputed) may approach the Special Court under Section 154(5) even without a criminal complaint under Section 151, since Part XV (Special Courts) operates independently of Section 151 in Part XIV. Because the Special Court can grant relief equivalent to a civil decree, with appeal/revision to the High Court (Section 156), review (Section 157), and refund of excess deposits (Section 154(6)), the statutory scheme is a complete, self-contained code, and civil-court jurisdiction over theft-assessment disputes is impliedly excluded; natural-justice or breach-of-Act pleadings cannot be used to smuggle the dispute back into the civil court (para 17).

A period-wise transitional scheme governs theft detected before 14th December 2005. At paras 18-20, because Section 172(b) continued the licensees' pre-existing Conditions of Supply for one year from the Act's commencement in Gujarat (i.e., till 9.12.2004), and because the Supply Code could not validly prescribe theft assessment until amended, the Bench works out four periods: (I) up to 9.12.2004 — governed by the licensees' own Conditions of Supply, civil court unbarred (subject to ***Kiran Industries v. Gujarat Electricity Board*** on interim injunctions); (II-A) 10.12.2004 to 30.3.2005 and (II-B) 31.3.2005 to 13.12.2005 — assessment capped, applying the *casus omissus* principle from ***Unique Butyle Tube Industries Pvt. Ltd. v. U.P. Financial Corporation***, at one-and-half times the tariff for a maximum of six months, with civil-court jurisdiction preserved because the Special Court route would otherwise expose the consumer to a higher liability; and (III) from 14.12.2005 — the amended Regulation 7.6.5 applies in full, with the Special Court as the exclusive remedy.

Operative disposal of the batch. At paras 23-26, applying the above periodisation to each matter per the charts furnished by counsel, the Bench allows AEC's Letters Patent Appeals against Category I assessments, dismisses the corresponding Category I writ petitions, directs revised assessment in the Category II-A matter concerning the named respondent and in the Category II-B matters (partly allowing Special Civil Application No. 12236 of 2005), dismisses the sole Category III petition, and disposes of the Gujarat Electricity Board petitions (all Category II-B) without further relief since its bills were already within the permissible cap; consequential directions are given for refund of excess deposits and instalment recovery of shortfalls, and a request to stay the judgment is refused.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003 & SUPPLY CODE

Section 126 & Section 127 — Unauthorised Use of Electricity

Section 126(1) empowers the assessing officer to provisionally, and then finally, assess electricity charges (at one-and-half times tariff, for three months in domestic/agricultural cases or six months for others) wherever "unauthorised use of electricity" (Explanation (b): use by artificial means, by unauthorised means, through a tampered meter, or for an unauthorised purpose) is found, following a procedure that embodies natural justice (notice, objections, hearing). Section 127 gives a right of appeal against the final order, conditional on deposit of one-third of the assessed amount. Neither provision requires proof of dishonesty, and neither applies to theft.

Section 135 — Theft of Electricity

Section 135(1) punishes whoever "dishonestly" taps a line, tampers or uses a tampered meter, or damages metering equipment so as to abstract, consume or use electricity, with imprisonment up to three years and a fine of not less than three (or, on repetition, six) times the financial gain, the second proviso raising a rebuttable presumption of dishonesty from the mere existence of artificial or unauthorised means of abstraction. *Mens rea* is the essential ingredient distinguishing theft from Section 126's unauthorised use; Section 135 itself is silent on the manner of assessing civil liability, that machinery being supplied instead by Section 50 and the Supply Code and, for the ultimate civil determination, by Section 154(5).

Section 50 & Regulation 7.6.5 — the Supply Code as the Assessment Machinery for Theft

Section 50 empowers the State Commission to specify an Electricity Supply Code covering, inter alia, disconnection and recovery of charges, but (until amended) did not expressly address assessment in theft cases. Regulation 7.6.5 of the GERC Supply Code, 2005, as amended with effect from 14th December 2005 pursuant to the Central Government's order under Section 183, now fixes the assessment for theft at two times the applicable tariff for up to twelve months preceding detection (or the exact, shorter period of theft), subject to adjudication by the competent court — making the Supply Code, not Section 126, the source of the licensee's power to bill for theft.

Sections 153, 154(5)&(6) & 156 — the Special Court as a Complete Civil & Criminal Forum

Section 153 constitutes Special Courts (presided over by an Additional District & Sessions Judge) for speedy trial of offences under Sections 135-139; Section 154(5) additionally empowers the Special Court to determine the consumer's civil liability for theft (at not less than two times the tariff for up to twelve months), recoverable as a civil-court decree, with excess deposits refundable with interest under Section 154(6), and appeal/revision to the High Court under Section 156 as if the Special Court were a District or Sessions Court. This machinery operates independently of a criminal complaint under Section 151, so a consumer may invoke it to dispute a theft assessment even where no prosecution is launched.

Section 183 — Removal of Difficulties

Section 183 permits the Central Government, within two years of commencement, to make orders "not inconsistent with the provisions of the Act" to remove difficulties in giving it effect. Applying ***M.U. Sinai v. Union of India***, such power — sometimes called a "Henry VIII clause" — may only round off angularities or smoothen the Act's working, not change its basic structure or essential provisions; the Removal of Difficulties Order dated 8th June 2005, enabling the Supply Code to prescribe a theft-assessment method, was held to do no more than this and was therefore valid.

Section 145 & Section 172 — Ouster of Civil Court and Transitional Continuity

Section 145 ousts civil-court jurisdiction over matters the assessing officer, appellate authority or adjudicating officer is empowered to determine, but does not, in terms, mention the Special Court's Section 154(5) civil-liability jurisdiction; the Bench reads that jurisdiction in as an implied exclusion once the statutory scheme is shown to be a complete code. Section 172(b) continued licences (and the licensees' own Conditions of Supply) granted under the repealed 1910/1948 Acts for one year from the Act's commencement in Gujarat, i.e., till 9th December 2004, so that theft detected before that date remained governed by the old Conditions of Supply, with civil-court jurisdiction unaffected by the new Act's ouster provisions.

> **RATIO DECIDENDI**
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> Theft of electricity under Section 135 of the Electricity Act, 2003 requires a dishonest act and is conceptually and statutorily distinct from "unauthorised use of electricity" under Section 126, which requires no *mens rea*; consequently, assessment of a consumer's civil liability for theft is not governed by Sections 126/127 but by Section 50 read with the Electricity Supply Code framed by the State Commission (Regulation 7.6.5, as validly amended with effect from 14th December 2005 pursuant to the Central Government's order under Section 183), and the consumer's remedy against such an assessment lies before the Special Court constituted under Section 153, exercising its civil jurisdiction under Section 154(5)&(6) — a jurisdiction available irrespective of whether a criminal complaint has been filed, and one which, being a complete and self-contained code with appeal, revision and review to the High Court, impliedly

excludes the jurisdiction of the civil court. Because a licensee may disconnect supply forthwith, without notice or hearing, on a mere *prima facie* finding of theft (departmental appeal, judicial review and the Special Court being sufficient safeguards), and because the statutory machinery to assess theft charges did not validly exist until the Supply Code was amended, the civil liability of consumers whose theft was detected before 14th December 2005 must be worked out period-wise — under the licensees' pre-existing Conditions of Supply for detections up to 9th December 2004, and capped at one-and-half times the applicable tariff for a maximum of six months (with civil-court jurisdiction preserved) for detections between 10th December 2004 and 13th December 2005.

ALSO HELD & OBITER

- **The "Henry VIII clause" label is noted but not determinative.** In discussing Section 183, the Bench notes (para 14.4) that a removal-of-difficulties power is sometimes called the "draftsman's insurance clause" and sometimes a "Henry VIII clause", but observes that whatever the nomenclature, the applicable restrictions are those laid down by the Supreme Court in ***M.U. Sinai v. Union of India***; the historical labelling is passing commentary, not part of the operative reasoning.
- **The Delhi High Court's parallel view is noted without being relied upon for the assessment machinery.** The Bench observes (para 12.4) that the Delhi High Court had taken a similar view on the Section 126/135 distinction in ***Sohanlal v. North Delhi Power Ltd.***, but notes that the Delhi judgment (predating the Removal of Difficulties Order) did not explain how a licensee could make a theft assessment at two times the tariff absent express statutory power — a gap this Bench itself resolves through Section 50 and the amended Supply Code.

DISPOSITION

The reference is answered against the consumers, and the batch is disposed of period-wise (paras 21-22, 24-26). As to the matter giving the case its title — Letters Patent Appeal No. 512 of 2005 filed by Torrent Power AEC Ltd. against Gayatri Intermediates Pvt. Ltd. (arising from Special Civil Application No. 955 of 2005, a Category II-A case) — the appeal is **disposed of** with a direction that AEC revise the bill in accordance with the principles laid down in the judgment (assessment capped at one-and-half times tariff for six months); no further order was required since Gayatri Intermediates had paid nothing towards the disputed bill and its supply already stood disconnected. As to the rest of the batch: Letters Patent Appeal Nos. 2634 of 2004 and 471 & 513 of 2005 (Category I) are **allowed**, with the corresponding Special Civil Applications (including Nos. 23514 of 2005 & 352 of 2006) **dismissed**; Special Civil Application No. 12236 of 2005 (Category II-B) is **partly allowed** for reassessment with consequential refund/recovery directions; Special Civil Application No. 260 of 2006 (Category III) is **dismissed**; and the twelve Special Civil Applications against the Gujarat Electricity Board (Category II-B) are **disposed of** with the declarations recorded but no further relief, its bills already being within the permissible cap. General directions provide for instalment recovery of shortfalls and refund of excess deposits by 15th May 2006, factual contentions being left open to the alternative remedies indicated in para 22; a request to stay the judgment is **rejected**.

SIGNIFICANCE

A comprehensive Division-Bench resolution of the Section 126/135 theft-assessment controversy under the Electricity Act, 2003, later invoked as authority on the narrower disconnection-without-notice point; five propositions stand out:

- **Theft and unauthorised use are governed by separate machineries.** Section 135 theft (*mens rea*) is assessed under Section 50 and the Supply Code, not under Section 126/127 (which covers unauthorised use without *mens rea*) — a foundational distinction later relied upon in cases such as ***Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. v. Sri Seetaram Rice Mill***.

- **No notice is required before disconnection on *prima facie* theft.** Following ***M.P. Electricity Board v. Harsh Wood Products*** and ***Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board***, the Bench holds that departmental appeal, judicial review and now the Special Court are sufficient safeguards without a pre-disconnection hearing — the very proposition for which this judgment was later cited in ***Jayshree Talkies v. Paschim Gujarat Vij Company Ltd.***
- **The Special Court's civil jurisdiction is a complete code, impliedly ousting the civil court.** Section 154(5)& (6), read with Sections 153, 156 & 157, gives the Special Court decree-like civil powers, appeal/revision and review; applying ***Dhulabhai v. State of M.P.*** as narrowed in ***Mafatlal Industries Ltd. v. Union of India***, this excludes civil-court jurisdiction over theft-assessment disputes even absent an express bar in Section 145.
- **A removal-of-difficulties order validly filled a genuine statutory gap.** The Bench upholds the Central Government's Section 183 order and the consequential Supply Code amendment as legitimate exercises of the limited power to smoothen the Act's working, applying the restrictions laid down by the Constitution Bench in ***M.U. Sinai v. Union of India***.
- **A detailed transitional scheme bridges the gap until the Supply Code caught up.** For theft detected before the Supply Code validly addressed assessment (i.e., before 14th December 2005), the Bench devised an interim cap (one-and-half times tariff, six months) and preserved civil-court jurisdiction where the Special Court route would otherwise expose consumers to a harsher, retrospectively higher liability.

TABLE OF AUTHORITIES

Authorities discussed in the judgment — Supreme Court precedent on natural justice, ouster of civil-court jurisdiction and the removal-of-difficulties power, together with the conflicting Single-Judge and Division-Bench decisions of this Court whose divergence occasioned the reference — with the treatment each received; case names have been identified from the discussion surrounding each citation, the citation strings in the source fingerprint being unreliable sentence fragments.

AUTHORITY	PROPOSITION & HOW TREATED	TREATMENT
Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board Supreme Court	Held that where a consumer is prima facie found to have committed theft, the licensee need not give notice or an opportunity of hearing before disconnecting supply; departmental appeal and judicial review are sufficient safeguards. Followed (with Harsh Wood Products) to reject the natural-justice challenge to disconnection (para 13.2), the Bench also noting the further safeguard of the Special Court.	Followed
M.P. Electricity Board v. Harsh Wood Products Supreme Court	Companion holding that disconnection on prima facie theft, without notice, does not violate Articles 14 or 20(1) or natural justice. Followed to reject the petitioners' natural-justice contention (para 13).	Followed
M.U. Sinai v. Union of India Supreme Court (Constitution Bench)	Laid down (para 47) that a "removal of difficulties" power may only round off angularities and cannot alter a statute's basic structure or essential provisions. Applied to test and uphold the Central Government's order dated 8.6.2005 under Section 183 (paras 14.4-14.5).	Applied

AUTHORITY	PROPOSITION & HOW TREATED	TREATMENT
Maharana Mills Pvt. Ltd. v. Income Tax Tribunal, Ahmedabad Supreme Court	Held that the Government's subjective satisfaction that a difficulty has arisen is not conclusive and remains open to judicial scrutiny. Relied on (para 14.4(iv)) as part of the test applied to the Section 183 order.	Relied on
Agricultural Market Committee v. Shalimar Chemical Works Ltd. AIR 1997 SC 2504 · Supreme Court	Held that the Legislature must enunciate policy and principles before delegating subsidiary legislative power. Relied on (para 14.4(v)) as a further constraint considered in upholding the Section 183 order and the Supply Code amendment.	Relied on
Dhulabhai v. State of M.P. Supreme Court (Constitution Bench)	Laid down the seven principles governing express or implied ouster of civil-court jurisdiction under a special statute. Applied (paras 15.4-17) to hold that disputes over the quantum of a theft assessment are impliedly excluded from civil-court jurisdiction, given the complete code in Sections 153-157.	Applied
Mafatlal Industries Ltd. v. Union of India Supreme Court (Nine-Judge Bench)	Narrowed Dhulabhai's Principle (1) by holding that only non-compliance with fundamental statutory provisions or fundamental judicial procedure defeats the finality of a special tribunal's order. Relied on (para 15.5) to confirm that the Special Court's regime satisfies Dhulabhai and ousts the civil court.	Relied on
Unique Butyle Tube Industries Pvt. Ltd. v. U.P. Financial Corporation Supreme Court	Laid down the principles of casus omissus and reading a statute as a whole to avoid an absurd or anomalous result. Applied (para 20.3) to hold that, even before the Supply Code was amended, a consumer prima facie found to have committed theft was liable at one-and-half times tariff for six months, a nil or lower liability being an absurd result.	Applied
Sohanlal v. North Delhi Power Ltd. W.P.(C) No. 649 of 2004, decided 31.5.2004 · Delhi High Court	Took a similar view distinguishing theft (Section 135) from unauthorised use (Section 126). Referred to as a concurring view (para 12.4), though noted to predate the Removal of Difficulties Order and hence not to address how assessment could otherwise be made in theft cases.	Referred
Kiran Industries v. Gujarat Electricity Board 1995 (2) GLR 1158 · Gujarat High Court (DB)	Division Bench precedent laying down principles governing grant of interim injunctions against the licensee. Referred to as continuing to guide civil courts on interim-injunction applications in theft cases detected before 10.12.2004, when civil-court jurisdiction is not barred (paras 19.3, 22).	Referred
Leenaben Soni v. Ahmedabad Electricity Co. Ltd. 2005 (1) GLR 247 · Gujarat High Court (Single Judge)	D.N. Patel, J. held that Sections 126/127 do not apply to theft cases and that assessment is instead governed by Section 154(5). Approved in substance as reflecting the correct distinction between Sections 126 and 135, though this Bench locates the assessment machinery in Section 50/the Supply Code rather than Section 154(5) directly (para 21(v)).	Approved

AUTHORITY	PROPOSITION & HOW TREATED	TREATMENT
Ahmedabad Electricity Co. Ltd. v. Ramesh D. Devnani 2005 (2) GLR 1202 · Gujarat High Court (Single Judge)	Companion decision of D.N. Patel, J. to the same effect as Leenaben Soni. Approved along with it as reflecting the correct distinction between Sections 126 and 135/154.	Approved

This digest is a condensed reference prepared from the text of the judgment. It is not a substitute for the full judgment and should be verified against the original before use.